

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lara Freishtat	Team: Team # 4	CCRB Case #: 200605999	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 05/04/2006 3:42 PM	Location of Incident: Castleton Avenue and Davis Avenue	18 Mo. SOL 11/4/2007	Precinct: 120
Date/Time CV Reported Wed, 05/10/2006 10:14 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/10/2006 10:14 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Robert Drescher	13359	936520	120 PCT
3. POM Frank Desiderato	13351	936473	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Yukfung Ng	25211	935397	120 PCT
2. POM Albert Anzalone	24070	932263	120 PCT
3. POM Jonathan Herbst	05159	932783	120 PCT
4. POM Min Kim	10361	937149	120 PCT
5. POM Nicholas Gentile	12264	936657	120 PCT
6. POM James Casale	27945	929848	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Drescher	Force: PO Robert Drescher used physical force against § 87(2)(b)	A . Unfounded
B . POM Frank Desiderato	Force: PO Frank Desiderato used physical force against § 87(2)(b)	B . Unfounded
C . An officer	Force: An officer used a chokehold against § 87(2)(b)	C . Officer(s) Unidentified
D . An officer	Force: An officer hit § 87(2)(b) against a bus.	D . Officer(s) Unidentified
E . POM Frank Desiderato	Abuse: PO Frank Desiderato threatened to arrest § 87(2)(b)	E . Unsubstantiated

Synopsis

On May 4, 2006, at approximately 3:40 PM, § 87(2)(b) was sitting on a bus when a fight broke out on the bus between some kids near Castleton Avenue and Davis Avenue in Staten Island. The bus pulled over to the side of the road and the police were called to the scene. Everyone was removed from the bus and was waiting for a second bus to respond. A second bus, along with numerous officers, responded to the scene. However, when § 87(2)(b) attempted to board the second bus, PO Robert Drescher jumped in front of him and told him he was not allowed to board the bus until the officers finished questioning people about the incident. § 87(2)(b) began to argue with PO Drescher, when PO Frank Desiderato came up behind him. § 87(2)(b) turned around to speak with PO Desiderato, when PO Drescher knelt § 87(2)(b) in the back, pushing him into PO Desiderato (allegation A). PO Desiderato then grabbed § 87(2)(b) and threw him to the ground (allegation B). § 87(2)(b) stood back up and began to question the officers about their actions, when an officer came up behind him, placed his arm around § 87(2)(b)'s neck while bringing § 87(2)(b)'s arm behind his back and pushed § 87(2)(b) forward into the bus (allegations C and D). PO Drescher then approached them and escorted § 87(2)(b) to the front of the first bus and asked him if he had any warrants for his arrest. The two of them began to argue about § 87(2)(b)'s actions and PO Desiderato approached the scene and told PO Drescher to "just arrest him because he doesn't know how to shut up (allegation E)." Hearing this, § 87(2)(b) quieted down and PO Drescher issued him a summons § 87(2)(b).

§ 87(2)(g)
it is recommended that allegations A and B be unfounded. § 87(2)(g)
(g)
Thus it is recommended that allegations C and D be closed as officer unidentified. § 87(2)(g) it is recommended that allegation E be unsubstantiated.

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) filed this complaint by telephone with the CCRB on May 10, 2006 (see enclosure # 4a-4b). He was interviewed at the CCRB on May 24, 2006 (see enclosure # 5a-5d). It should be noted that when he first filed his complaint, he alleged that PO Desiderato was the officer who placed him in a chokehold and not the third officer.

On May 24, 2006, at approximately 3:40 PM, § 87(2)(b) was on bus 46 going home from the Staten Island Ferry, when he heard a commotion on the bus. § 87(2)(b) turned around to see what was going on, but there were so many people on the bus, that he could not see anything. The bus then pulled over at Castleton Avenue and Davis Avenue in Staten Island and everyone exited the bus and the police and an ambulance were called. § 87(2)(b) and others walked to the back of the bus to see what had happened, and he saw a kid lying on the ground, bleeding. § 87(2)(b) then exited the bus. He stated that the kids who beat the other one up ran off the bus at an earlier stop.

§ 87(2)(b) stated that three marked police vehicles arrived at the scene. A second bus also arrived to continue the bus route. However, when § 87(2)(b) attempted to get on the bus, an officer, identified through the summons as PO Robert Drescher, jumped in front of him on the steps and informed him that they were questioning people, so he could not get on the bus. § 87(2)(b) explained that he just wanted to go home and that he did not see or hear anything. PO Drescher became very angry and pointed his finger in § 87(2)(b)'s face, again informing him that he could not get on the bus. § 87(2)(b) placed his hands in the air and asked what the officer was doing, when a second officer (described as a tall heavyset white male, approximately 6'1 and in his 30s), identified through the investigation as PO Frank Desiderato, came up behind § 87(2)(b) and said something to him. While § 87(2)(b) originally denied knowing what PO Desiderato said to him, he later stated that he thought he instructed him to "shut up and get off of the bus."

After hearing his voice, § 87(2)(b) turned around to face PO Desiderato and PO Drescher kneeled him once in the small of his back, pushing him off of the bus into PO Desiderato. PO Desiderato then grabbed § 87(2)(b) by the front of his shirt and threw him down to the ground. § 87(2)(b) immediately jumped back up and began yelling at the officers to stop because he had not done anything wrong. PO Desiderato yelled at him for yelling at PO Drescher and § 87(2)(b) explained that PO Drescher yelled at him first so he can do the same to him. The officers informed him that he needed to respect them, which he denied, saying they needed to respect him first. While they were arguing, an officer, PO1 (who he described as an Asian male with dark hair and approximately 5'5), identified through the investigation as PO Min Kim, came up behind § 87(2)(b) placed him in a chokehold and pushed him against the bus face-first. § 87(2)(b) described PO Kim's actions as placing his right arm around § 87(2)(b)'s neck and then grabbing § 87(2)(b)'s left arm, twisting it behind him and pushing him against the bus, which was a few inches away. While § 87(2)(b) alleged for almost his entire CCRB interview that PO Kim was silent during this incident, he adjusted his story at the end, alleging that PO Kim told him to "shut up," while he had him placed against the bus.

PO Desiderato instructed PO Kim to arrest him and PO Drescher then removed § 87(2)(b) to the front of the first bus, where he questioned him about the incident and if he had any warrants on him. As this was going on, the passengers from his bus boarded the second bus and drove away. PO Drescher accused § 87(2)(b) of trying to "show-off" in front of people, but § 87(2)(b) denied this, saying that he just wanted to go home. He asked them why they were doing this and informed them that they were not "God," but PO Desiderato said to PO Drescher, "just arrest him, because he doesn't know how to shut up." § 87(2)(b) then kept quiet and was eventually released with a summons and went home.

§ 87(2)(b) stated that he thought the other passengers and the bus driver were witnesses to the physical force used against him as it happened before they boarded the new bus and some of them were yelling at the officers to stop. § 87(2)(b)'s arm and back were sore from this incident and he saw a private doctor at § 87(2)(b) about it. He stated he had an MRI and he is waiting for the results. He stated he is planning on fighting the summons but he is not going to file civil suit about the incident. He stated he wants the officers to be reprimanded for their actions and wants them to know that they cannot do this to people because it was not right and it was undeserved.

Results of Investigation

Witness Statement:

§ 87(2)(g) only one witness statement was obtained. According to the SPRINT report, three people called 911 about the incident, one of which was the bus driver. However, the numerous attempts to identify the bus driver were fruitless. MTA investigations could not find a report about the incident and the number the bus driver allegedly called from was actually a switchboard number, who called 911 on behalf of the bus driver, and did not have a record of who the driver was that day. Additionally, a request was made for the UF-61 from this incident, but it was not released, as the victim of the assault was a minor. However, a check by the NYPD, for any witnesses listed on the UF-61, was negative. Lastly, a call was placed to § 87(2)(b), who was one of the people who called 911 about the assault, but he stated that he did not witness the incident involving § 87(2)(b) as he left the scene after being removed from the bus.

§ 87(2)(b)

§ 87(2)(b) is the third person according to the SPRINT report, who called 911 about the incident. Her statement about the incident was obtained over the telephone on January 11, 2007 (see enclosure # 6a).

§ 87(2)(b) stated that on the date of incident, a fight between kids broke out on the bus and a boy's nose was busted open. The police were called and everyone was instructed to leave the bus. While the crowd was waiting, the police showed up, as did a second bus. People from the crowd attempted to get onto the second bus, but the officers refused to allow them entry. An officer blocked the entrance to the second bus, which prevented people from getting on or off the bus. The officers explained that no one was going

anywhere until the officers were told what everyone had seen or knew about the incident, despite the fact that people tried to explain that the kids involved in the fight had already run away from the scene.

A male then walked up to the officer blocking the doorway to the bus and stated that he had had nothing to do with this incident and was just trying to get home. He then walked around the officer at the bus door, or tried to, but the officer "yanked" him back and then pushed him face-first, into the back of the first bus. The man's arm was then yanked behind his back. Seeing this, the crowd of people there became upset and started yelling about getting a pen to write down the officers' shield numbers for a report. While other officers were at the scene, § 87(2)(b) stated that they seemed to be dealing with the crowd, and trying to keep them separated from the individual. Eventually things calmed down and everyone was allowed to board the bus, after being questioned by the officers. § 87(2)(b) stated that she did not see the remainder of the interaction between the officers and the individual, because she boarded the bus, but she knew they released him because she later saw him on the bus. She stated that she thought the officers were originally going to arrest the man, but because of the crowd's reaction, they let him go.

§ 87(2)(b) stated that she did not think the man who was slammed against the bus ever fell to the floor and she only remembered him being slammed against the bus. She stated that she did not see how the officers grabbed him though or if they ever put an arm around his neck. She also stated that she did not hear if the officers said anything else to the man, because she started looking for a pen to write down the officers' information. § 87(2)(b) explained that she thought the officer's actions were unnecessary because this had been a "kid fight," and that what happened was "not right." She could not describe the officer except to say he was male and was either white or Asian. She was also positive that the officer who pushed him against the bus was the same officer the man tried to walk around to board the bus.

Officer Identification:

§ 87(2)(b) identified PO Drescher through the summons he was issued (see enclosure # 18a). PO Desiderato was identified via his own CCRB interview. He stated that he was the officer with PO Drescher, his partner, while § 87(2)(b) was being issued the summons. Additionally, PO Desiderato matches the description provided by § 87(2)(b) as the officer who threw him down to the ground. The remaining officers, consisting of PO Albert Anzalone, PO Jonathan Herbst, PO Min Kim, PO Nicholas Gentile and PO James Casale were identified via the SPRINT report and roll call as possibly being present at the incident. PO Yukfung Ng, who was interviewed as possibly being the third subject officer as he is Asian, was identified via roll call.

Officer Statements:

PO Robert Drescher:

PO Drescher was interviewed at the CCRB on September 7, 2006 (see enclosure # 9a-9d). He stated that on May 4, 2006, he worked the hours of 0705x1540 and was assigned to patrol with PO Frank Desiderato. He was dressed in uniform and assigned to a marked vehicle. His memobook states;

"1535- (34) @ Davis + Castleton; 1542- (c) summons Davis + Castleton; 1550-EOT"

On May 4, 2006, at approximately 3:35 PM, PO Drescher was on patrol with PO Frank Desiderato when the call of an assault in progress at Castleton Avenue and Davis Avenue in Staten Island came over the radio. When they responded to the scene, PO Drescher saw that another sector, possibly sector E, had already responded. PO Drescher also saw approximately 25-30 people standing on the sidewalk, who had been on the first bus and were removed from it, so the officers could try to figure out what went on. The people were then waiting on the sidewalk to board the second bus that had arrived at the scene. He described the people as somewhat confused as to what was going on and the scene as "hectic." However, only one individual, identified as § 87(2)(b) actually "rushed" the second bus.

§ 87(2)(b) boarded the second bus, but PO Drescher followed him and was able to place himself in front of § 87(2)(b) on the steps of the second bus. PO Drescher, who was the first officer on the bus, asked § 87(2)(b) numerous times to get off of the bus, but § 87(2)(b) refused, stating that he

did not know anything and that the officers could not make him stay and that he did not care. A couple of officers, whose identities PO Drescher did not recall, then came up behind § 87(2)(b) whose back was facing the outside and escorted him off of the bus. PO Drescher thought it was possible they grabbed his arms and pulled him off of the bus, but he did not actually see what the officers did since § 87(2)(b) was in between them. He only saw § 87(2)(b) step backwards off the bus. PO Drescher then followed § 87(2)(b) off of the bus a few seconds later and saw that § 87(2)(b) was sitting on the bumper of the first bus. As he was being taken off the bus, § 87(2)(b) continued to yell and was saying “Fuck you, I don’t have to listen to you.”

PO Drescher approached § 87(2)(b) who had calmed down, with PO Desiderato standing by watching, and asked for his identification. § 87(2)(b) provided it and after the officers verified that he did not have any warrants, PO Drescher issued him a summons § 87(2)(b). At one point, § 87(2)(b) made noises as if he was in pain, possibly to his ribs, but when PO Drescher asked if he wanted any medical treatment, § 87(2)(b) refused it. PO Drescher stated that § 87(2)(b) never explained how he received his injury. After he finished writing the summons, PO Drescher released § 87(2)(b).

PO Drescher stated that he thought approximately 15 officers from his command responded to this scene. He thought so many officers responded because this incident happened during a tour change. PO Drescher denied using any physical force against § 87(2)(b) and denied having any physical contact with him. He denied seeing an officer make physical contact with § 87(2)(b) except for when he was possibly pulled off of the bus or mention anything about § 87(2)(b) being placed under arrest.

PO Albert Anzalone:

PO Albert Anzalone was interviewed at the CCRB on September 13, 2006 (see enclosure # 10a-10d). He stated that on May 4, 2006, he worked the hours of 0706x1540 and was assigned to patrol with PO Jonathan Herbst. He was dressed in uniform and assigned to a marked motor vehicle. His memobook states; “1532- 10-34 @ c/o Davis Ave + Castleton Ave; 1620- 93Q, 93C”

On May 4, 2006, at approximately 3:30 PM, PO Albert Anzalone was on patrol when he responded to an assault on a bus at the corner of Castleton Avenue and Davis Avenue in Staten Island. He pulled up to the scene at the same time as other officers, and stated there were about six officers on scene, including himself and PO Herbst. Upon his arrival, he saw that the bus the assault occurred on was parked on the corner, with a crowd of approximately 10 to 20 people standing by it and about ten people still on the bus. PO Anzalone was informed that the injured party was at the back of the bus, so he went around to the back of the bus to wait for the victim to leave the bus. While he was doing this, other officers removed the remaining people from the bus.

As he was waiting for the victim, everyone from the bus had been removed by PO Drescher and PO Desiderato, who were escorting people off the bus and ensuring that they did not get back on it. After this happened, the passengers from the bus became “irate”, as they wanted to get back on the bus and continue on their way. He stated that they were screaming and yelling, causing PO Anzalone to be concerned. He then heard one specific male voice say “Get his shield, get his shield, we’ll take care of him.” After viewing his photograph, PO Anzalone identified § 87(2)(b) as being the one who was yelling about getting an officer’s shield number. He described § 87(2)(b) who was standing approximately 10 feet to his right, as acting in a belligerent manner. PO Anzalone stated that § 87(2)(b) was yelling and “bumping” against officers, possibly PO Drescher, in an attempt to get on the bus. PO Anzalone was unable to describe how § 87(2)(b) “bumped” against the officers and only stated that it appeared as if § 87(2)(b) made physical contact with the officers. In response, § 87(2)(b) was brought over, possibly pulled over, to the side of an RMP, where he was issued a summons. Eventually the victim was removed from the bus and PO Anzalone followed him over to the ambulance. After approximately 15 minutes, the victim was then removed to § 87(2)(b) and PO Anzalone followed them there.

PO Anzalone denied interacting with § 87(2)(b) or any of the other passengers, stating that he only dealt with the victim of the assault. PO Anzalone stated that he did not see any officer use physical

force against § 87(2)(b) and denied seeing him pushed into the side of a bus or an RMP. He also denied seeing § 87(2)(b) ever on the ground and did not think he sustained any injuries.

PO Min Kim:

PO Min Kim was interviewed at the CCRB on November 29, 2006 (see enclosure # 13a-13d). He stated that on May 4, 2006, he worked the hours of 1500x2335 and was assigned to conditions with PO Nicholas Gentile. He was dressed in uniform and assigned to a marked motor vehicle. He did not have any entries in his memobook regarding this incident.

On May 4, 2006, at approximately 3:45 PM, PO Min Kim had just left roll call with his partner, PO Nicholas Gentile, when the call of an assault on a bus went over the radio at Castleton Avenue and Davis Avenue in Staten Island. They responded to the location, backing up another sector, and when they arrived, PO Kim saw maybe 3 other police vehicles at the location from both tours. PO Kim stated that besides PO Drescher, he did not recall who else responded to the scene. He also saw that some officers had boarded the bus where the victim was located and that the passengers had already started to be removed from the bus. PO Kim also saw an altercation going on at the door of the bus between PO Drescher and a man he now knows is § 87(2)(b).

PO Kim described the altercation as PO Drescher standing on the steps of the bus, maybe two steps up, facing § 87(2)(b) who wanted to get on the bus. PO Kim stated that there was “a lot of yelling between them” with PO Drescher explaining that § 87(2)(b) could not board the bus right then and § 87(2)(b) still wanting to. PO Kim stated that § 87(2)(b) was told numerous times that he could not get on the bus right then. PO Gentile then walked over to the two of them and placed himself in between them. When he was doing so, his back was to § 87(2)(b) and § 87(2)(b) placed his hand on PO Gentile’s back and shoulder. Seeing this, PO Kim immediately grabbed § 87(2)(b) by both arms and “guided” him away from PO Drescher, PO Gentile and the bus. PO Kim stated that while he was not sure what kind of touch § 87(2)(b) did towards his partner, it still occurred during an altercation so he wanted to remove § 87(2)(b) from the situation. PO Kim stated that he guided § 87(2)(b) a couple steps away and while § 87(2)(b) was still questioning why he could not get on the bus, he was not physically resistant or uncooperative with PO Kim. PO Drescher followed them to the location and issued § 87(2)(b) a summons. After PO Drescher joined them, PO Kim left them alone, and boarded the bus to join PO Gentile, who had already boarded it to help deal with the assault victim. After approximately 5-10 minutes at the scene, PO Kim and PO Gentile returned to their vehicle and resumed patrol.

PO Kim stated that to his knowledge, when § 87(2)(b) touched PO Gentile, it was the first time he made physical contact with an officer at the scene. He also stated that he was not sure where PO Desiderato had been during it. PO Kim stated that he only interacted with § 87(2)(b) for a minute and that was as he was guiding him away from the scene. PO Kim denied using any physical force against § 87(2)(b) and denied seeing another officer do so. He also stated that § 87(2)(b) was never on the ground and that the idea of arresting him had not been mentioned.

Additional Officers:

While PO Frank Desiderato was interviewed at the CCRB, his entire statement was not included in this report (see enclosure #7a-7d). § 87(2)(g) PO Desiderato stated that § 87(2)(b) was actually trying to get off the bus, rather than on it, and that he walked off the bus of his own volition, despite their insistence that he remain there. PO Desiderato went on to say that he and PO Drescher followed § 87(2)(b) off the bus, and saw that he had stopped next to another vehicle, and PO Drescher made the decision to issue him a summons. PO Desiderato denied all the allegations and stated that he did not see an officer make any physical contact with § 87(2)(b).

Additionally, PO Herbst was interviewed at the CCRB on October 25, 2006, but his statement was also not entirely included in this report (see enclosure # 11a-11b). He stated that he and PO Anzalone were some of the first officers to arrive and they immediately boarded the bus to speak with the assault victim. He stated that while they helped remove the victim to the ambulance, they left the scene afterwards, ending

their tour, rather than going to the hospital. He denied seeing § 87(2)(b) at the scene, stating that he is familiar with § 87(2)(b) from previous incidents when he was assigned to the burglary unit.

And while PO Gentile was interviewed at the CCRB on November 22, 2006, his statement was not fully included in this report (see enclosure # 12a-12e). § 87(2)(g) He stated that he and PO Kim immediately went to speak with the assault victim and that he never interacted with any other civilians at the scene. He stated that he did not recognize § 87(2)(b) and denied seeing or hearing any of the allegations.

While PO Ng was interviewed at the CCRB on September 5, 2006, and PO Casale was interviewed at the CCRB on December 8, 2006, their statements were not included in this report in their entirety either (see enclosure # 8a-8e, 14a-14b). Both men stated that they did not think they were present for this incident.

Officers Not Interviewed:

§ 87(2)(g)
[REDACTED]
[REDACTED]

Medical Records:

§ 87(2)(a) PBH §18(6)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

SPRINT Report:

The SPRINT report shows that on the date of incident, at approximately 3:30 PM, multiple people called 911 to say that a male had been assaulted on a bus and was heavily bleeding from his nose (see enclosure # 16a-16c). Police and EMS were requested and sectors E, I and Q responded to the location and car SP10 was shown as later resuming patrol. Sector E then followed EMS to § 87(2)(b).

Roll Call:

Given the fact that this incident occurred during a tour change, officers from both tours 2 and 3 from the 120th Precinct responded to this location (see enclosures # 17a-17bb). Roll call from tour 2 shows that PO Anzalone and PO Herbst were assigned to sector E and PO Drescher and PO Desiderato were assigned to sector Q. From tour 3, PO Casale was assigned to sector I, while PO Kim and PO Gentile were assigned to SP10.

§ 87(2)(a) 160.50
[REDACTED]
[REDACTED]
[REDACTED]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

CCRB Histories:

§ 87(2)(b) has not filed nor taken part in any other CCRB complaints (see enclosure # 3a).

Neither PO Robert Drescher, nor PO Frank Desiderato, both of which have been members of the NYPD for 2 years, have any CCRB substantiations (see enclosures # 1a, 2a).

Conclusions and Recommendations

Facts:

The undisputed facts of this case are as follows; on the date of incident, a group of kids assaulted another kid inside of a bus on Staten Island. The police and EMS were called to the scene, and all the passengers on the bus were asked to leave the bus. Multiple officers from both tours responded to this scene and a second bus responded to the location to pick up the passengers. § 87(2)(b) got into an argument with PO Drescher and was eventually issued a summons by him.

Facts in Dispute:

§ 87(2)(g)

Credibility:

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Analysis of Allegations:

Allegation A: PO Robert Drescher used physical force against § 87(2)(b)

Allegation B: PO Frank Desiderato used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while he was arguing with PO Drescher and PO Desiderato, PO Drescher kned him in the back, into PO Desiderato, who in turn threw § 87(2)(b) to the ground. Both officers denied this and § 87(2)(b) stated that she never saw § 87(2)(b) fall to the floor, and the only force she saw was him being pushed into the side of the bus. According to her statement, she was there from the beginning of the incident when § 87(2)(b) began arguing with the officer about getting on the bus, to when he was slammed against it. § 87(2)(g)

§ 87(2)(g) it is recommended that allegations A and B be closed as *unfounded*.

Allegation C: An officer used a chokehold against § 87(2)(b)

Allegation D: An officer hit § 87(2)(b) **against a bus.**

§ 87(2)(b) alleged that PO Kim came up behind him while he was arguing with PO Drescher and PO Desiderato, placed him in a chokehold and then slammed up forward against the bus. While all of the officers denied the notion that these allegations ever occurred, “§ 87(2)(b) was a witness to it. She stated that though she did not recall if an officer placed his arm around § 87(2)(b)’s neck, she did see an officer push him up against a bus. However she was unable to describe the officer except to say that he was white or Asian and it was definitely the officer § 87(2)(b) attempted to walk around to get on the bus. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that allegations C and D be closed as *officer unidentified*.

Allegation E: PO Frank Desiderato threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that as PO Drescher was checking to see if he had any warrants, the two of them continued to argue about the incident. Hearing this, PO Desiderato told PO Drescher to “just arrest” § 87(2)(b). He also alleged that PO Desiderato made this threat directly after § 87(2)(b) had been pushed against the bus. All of the officers denied this allegation and § 87(2)(b) stated that she was unable to hear the conversation between § 87(2)(b) and the officers because she initially was focused on finding a pen to take down the officers’ pedigree information and then later boarded the bus. § 87(2)(g)

§ 87(2)(g) it is recommended that allegation E be closed as *unsubstantiated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: